

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1102 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Josh Cantrell

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED POLICY
COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1102

By: Coleman and Frix of the
Senate

and

Roe of the House

PROPOSED POLICY COMMITTEE SUBSTITUTE

[vape products - Alternative Nicotine Products
Regulatory Act of 2026 - manufacturing, labeling,
marketing, and safety requirements - attestation -
penalties and suspension - Attorney General -
Alternative Nicotine Products Compliance Fund -
noncodification - codification - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Alternative
Nicotine Products Regulatory Act of 2026".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-229.50 of Title 63, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Alternative nicotine product" means any noncombustible product that contains nicotine and that is intended for human consumption, whether chewed, absorbed, dissolved, ingested, or consumed by other means;

2. "Department" means the Department of Revenue;

3. "E-liquid" means a solution that:

- a. contains propylene glycol, vegetable glycerin, nicotine, nicotine salts, flavorings, or both, and
- b. is intended to be used in an electronic cigarette.

E-liquid does not include cannabis, THC, CBD, or hemp as defined under the laws of this state;

4. "Manufacturing" means the process by which an alternative nicotine product is fabricated, assembled, packaged or labeled, and is sealed in final packaging intended for consumer use;

5. "Minor" means an individual who is less than twenty-one (21) years of age;

6. "Packaging" means any receptacle that contains a finished alternative nicotine product;

1 7. "Sale" or "sell" means to exchange or otherwise furnish any
2 alternative nicotine product to any individual of legal age for
3 monetary value; and

4 8. "Tamper-evident package" means a package having at least one
5 indicator or barrier to entry that, if breached or missing, can
6 reasonably be expected to provide visible evidence to consumers that
7 tampering has occurred.

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 1-229.51 of Title 63, unless
10 there is created a duplication in numbering, reads as follows:

11 A. Manufacturers, dealers, wholesalers, and retailers shall
12 comply with the following requirements:

13 1. An e-liquid bottle shall use a child-proof cap that has the
14 child-resistant effectiveness set forth in the federal poison
15 prevention packaging standards, 16 C.F.R., Section 1700.15(b)(1);

16 2. An e-liquid bottle or an electronic cigarette that contains
17 e-liquid shall use a tamper-evident package. The tamper-evident
18 package feature shall be designed to remain intact when handled in a
19 reasonable manner during the manufacture, distribution, and retail
20 display of the e-liquid bottle;

21 3. The label on an e-liquid bottle, electronic cigarette, or
22 alternative nicotine product shall meet the nicotine addictiveness
23 warning statement requirements set forth in 21 C.F.R., Section
24 1143.3; and

1 4. The package containing the alternative nicotine product
2 shall contain the ingredients in the product as well as the name of
3 the manufacturer or wholesaler, along with the address of the
4 manufacturer or wholesaler, firmly affixed to or printed on the
5 package for tracking purposes. A scannable bar code or QR code
6 located on the package may meet this requirement.

7 B. A manufacturer, dealer, wholesaler, or retailer of an
8 alternative nicotine product shall be prohibited from selling any
9 alternative nicotine product that uses in the name of the product,
10 the labeling of the product, the packaging of the product, or in its
11 marketing materials:

12 1. The terms "candy", "candies", or variants in spelling such
13 as "kandy" or "kandeez";

14 2. The terms "bubble gum", "cotton candy", "gummy bear", "gummy
15 worm", "lollipop", or other variants of these terms;

16 3. References to cartoons, cartoon characters, superheroes,
17 television shows, video games, and movies, or other similar
18 characters or references;

19 4. References or utilizes trade dress, trademarks, or other
20 related imagery that imitate or replicate trade dress, trademarks,
21 or other imagery of food brands or products that have been primarily
22 marketed to minors such as brands of breakfast cereals, cookies,
23 juice drinks, soft drinks, ice creams, and frozen pops; and
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1 5. References or utilizes trade dress, trademarks, or other
2 related imagery that imitate or replicate trade dress, trademarks,
3 or other imagery of school supplies such as USB drives or
4 highlighters, smart phones or smart watches, headphones, any item of
5 clothing, or toy, video game devices or phone app integration
6 features.

7 SECTION 4. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1-229.52 of Title 63, unless
9 there is created a duplication in numbering, reads as follows:

10 A. A manufacturer of alternative nicotine products for sale in
11 the state shall provide an attestation under the penalty of perjury
12 to the Attorney General on forms provided by the Attorney General's
13 Office of the following:

14 1. The manufacturer has received a marketing granted order for
15 the alternative nicotine product from the United States Food and
16 Drug Administration (FDA) in accordance with 21 U.S.C., Section
17 387(j); or

18 2. The manufacturer has submitted a premarket tobacco
19 application for the alternative nicotine product and has received a
20 submission tracking number (STN) from the FDA in accordance with 21
21 U.S.C., Section 387(j) and the application remains under review with
22 the FDA for more than one hundred eighty (180) days, the FDA has
23 issued a no marketing order for the alternative nicotine product,
24 but the agency or a federal court has issued a stay order or

1 injunction during the pendency of the manufacturer's appeal of the
2 no marketing order, or the order has been appealed either to the FDA
3 or a challenge to the order filed with a federal court and the
4 appeal or challenge is still pending.

5 B. The consumable material of the alternative nicotine product
6 shall be manufactured, processed, blended, or filled in the United
7 States by January 1, 2028, or such product shall be removed from the
8 list of products that are legal to sell.

9 C. Each manufacturer filing an attestation with the Attorney
10 General shall pay an initial fee of Five Thousand Dollars
11 (\$5,000.00) and a renewal fee annually of Two Thousand Five Hundred
12 Dollars (\$2,500.00).

13 D. The manufacturer shall notify the Attorney General within
14 thirty (30) days of any material change to the attestation,
15 including:

- 16 1. If the FDA has issued a market order or other authorization;
- 17 2. If the FDA has issued a market denial order;
- 18 3. If the FDA or a federal court has issued a stay or
19 injunction during pendency of the no marketing order; or
- 20 4. If the manufacturer has appealed to the FDA or filed a
21 challenge with a federal court and the appeal or challenge is still
22 pending.

1 SECTION 5. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-229.53 of Title 63, unless
3 there is created a duplication in numbering, reads as follows:

4 A. The Department shall assess a civil penalty against a
5 manufacturer, dealer, wholesaler, or retailer for a violation of
6 this act in an amount that does not exceed Five Thousand Dollars
7 (\$5,000.00). A civil penalty shall be assessed in addition to other
8 penalties allowed under this act.

9 B. The Attorney General is authorized to investigate and
10 enforce violations of Sections 3 and 4 of this act. Upon
11 determining that a manufacturer, dealer, wholesaler, or retailer has
12 violated any provision of Section 3 or 4 of this act, the Attorney
13 General shall bring a civil action in any court of competent
14 jurisdiction to either: seek injunctive relief restraining or
15 enjoining any manufacturer, dealer, wholesaler, or retailer from
16 continuing to engage in activities that violate Section 3 or 4;
17 recover civil penalties of up to Ten Thousand Dollars (\$10,000.00)
18 per violation; or obtain appropriate relief to protect the public
19 interest.

20 C. Civil penalties collected under this act shall be deposited
21 in the Alternative Nicotine Products Compliance Fund.

22 SECTION 6. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1-229.54 of Title 63, unless
24 there is created a duplication in numbering, reads as follows:

1 A. The Alternative Nicotine Products Compliance Fund is hereby
2 created as a special fund under state law.

3 B. The Alternative Nicotine Products Compliance Fund shall be
4 utilized by the Department and Attorney General for enforcement of
5 this act.

6 SECTION 7. This act shall become effective November 1, 2026.

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